

Petitioner

Regents of the University of California

Respondent

Allan Bakke

Location

University of California Medical School at Davis

Docket no.

76-811

Decided by

[Burger Court](#)

Lower court

Supreme Court of California

Citation

[438 US 265 \(1978\)](#)

Argued

Oct 12, 1977

Decided

Jun 26, 1978

Advocates

[Reynold H. Colvin](#) *Argued the cause for the respondent*

[Archibald Cox](#) *Argued the cause for the petitioner*

Facts of the case

Allan Bakke, a thirty-five-year-old white man, had twice applied for admission to the University of California Medical School at Davis. He was rejected both times. The school reserved sixteen places in each entering class of one hundred for "qualified" minorities, as part of the university's affirmative action program, in an effort to redress longstanding, unfair minority exclusions from the medical profession. Bakke's qualifications (college GPA and test scores) exceeded those of any of the minority students admitted in the two years Bakke's applications were rejected. Bakke contended, first in the California courts, then in the Supreme Court, that he was excluded from admission solely on the basis of race.

Question

Did the University of California violate the Fourteenth Amendment's equal protection clause, and the Civil Rights Act of 1964, by practicing an affirmative action policy that resulted in the repeated rejection of Bakke's application for admission to its medical school?

Conclusion

No and yes. There was no single majority opinion. Four of the justices contended that any racial quota system supported by government violated the Civil Rights Act of 1964. Justice Lewis F. Powell, Jr., agreed, casting the deciding vote ordering the medical school to admit Bakke. However, in his opinion, Powell argued that the rigid use of racial quotas as employed at the school violated the Equal Protection Clause of the Fourteenth Amendment. The remaining four justices held that the use of race as a criterion in admissions decisions in higher education was constitutionally permissible. Powell joined that opinion as well, contending that the use of race was permissible as one of several admission criteria. So, the Court managed to minimize white opposition to the goal of equality (by finding for Bakke) while extending gains for racial minorities through affirmative action.

8–1 decision for Bakke

plurality opinion by Lewis F. Powell, Jr.

Title VI of the Civil Rights Act of 1964 provides Bakke a cause of action.

5–4 decision for Regents of the University of California

majority opinion by Lewis F. Powell, Jr.

Title VI of the Civil Rights Act of 1964 does not prohibit the university's race-based admissions program.

5–4 decision for Regents of the University of California

plurality opinion by Lewis F. Powell, Jr.

The Equal Protection Clause permits race to be one factor, among many, in an admissions program.

5–4 decision for Bakke

plurality opinion by Lewis F. Powell, Jr.

The Equal Protection Clause prohibits the university's specific race-based admissions program, and Bakke shall be admitted.